

Notice of dispute — Stage 1

Clause 1.11.2(a), Certified Agreement (No. 12) 2025

Cory Lea Shepherd

AO3, Switchboard Services, Logan Hospital, Metro South Health

To: Ms Chloe Taylor, Manager, Switchboard Services
(immediate supervisor, for the purposes of clause 1.11.2(a))

Cc: Mr Scott Hughes, Director, Corporate Services
LBH.HRTeam1@health.qld.gov.au
lbh_InjuryManagement@health.qld.gov.au
Ms Emily Petering, Industrial Officer, Together Queensland
Mr Heath Moran, Together Queensland

Date: [SEND DATE]

Subject: Notice of dispute under clause 1.11 — application of the certified agreement to my attendance, roster, leave and pay from 26 June 2026

1. WHAT THIS NOTICE IS

This notice informs you, as my immediate supervisor, of the existence of a dispute, in accordance with clause 1.11.2(a) of the certified agreement.

Clause 1.11.2 provides that where there is "any disagreement between the parties as to the interpretation, application or implementation of this Agreement", the procedure in that clause applies. Clause 1.11.1 records that the objectives are "the avoidance and resolution of any disputes ... by measures based on the provision of information and explanation, consultation, co-operation and negotiation", and that "the emphasis will be on finding a resolution at the earliest possible stage in the process".

That is what I am seeking. I would prefer this resolved at Stage 1 and I am available to discuss it at any time.

2. THE SUBJECT MATTER OF THE DISPUTE

The dispute concerns the application and implementation of the certified agreement to my employment from 26 June 2026, in the following respects.

2.1 ATTENDANCE AND ROSTERED DUTY

I have not been permitted to attend my rostered shifts since 3 July 2026. On 2 July 2026 I was advised that the Health Service was "unable to facilitate" my return until a completed Employee Capacity Certificate was received, and asked to "wait for my advice to when your next returning shift will be".

The Employee Capability Checklist was returned to the Injury Management team on 3 July 2026 at 2:30pm and, a section having been identified as missing, resubmitted at 3:06pm that afternoon. The letter of 7 July 2026 records both times. The same letter records that "you have been certified fit to return to work effective from 3 July 2026". I asked the same afternoon to be told whether I should attend. I have not received an answer to that question.

The condition on which the advice of 2 July 2026 was expressed has therefore been satisfied. I have asked which instrument is relied on to maintain the position since, and have not received an answer.

2.2 LEAVE

Since 3 July 2026 my accrued leave has been debited, and from 13 July 2026 I have been recorded as absent without pay, in respect of a period in which I have been willing and available to work and have said so in writing. I dispute the application of the leave provisions of the certified agreement to that period.

2.3 ROSTER

I dispute the position, so far as it is taken, that my rostered pattern over the preceding twelve months is inconsistent with the requirements of my role. That pattern was set by the Health Service and worked without any concern being raised with me.

2.4 WORK HEALTH AND SAFETY MATTERS RAISED

Clause 7.1.11 provides that "the parties commit to ensure that appropriate feedback is provided to employees who raise workplace health and safety matters". Clause 7.1.5 records the parties' agreement to address, among other issues,

"management of ill or injured employees", "psychosocial issues and implementation of Managing the risk of psychosocial hazards at work Code of Practice 2022", and "injured workers to have the opportunity to be re-trained in alternative areas/departments". I have raised matters within each of those descriptions and have not received feedback on them.

2.5 PSYCHOSOCIAL RISK ASSESSMENT

Clause 7.2 provides for psychosocial risk assessments conducted using the resources in the Managing the risk of psychosocial hazards at work Code of Practice 2022, "in consultation with workers and Health and Safety Representatives". I have asked for a workplace risk assessment and none has been provided.

I record that the Health Service identified this itself. The letter of 7 July 2026 states:

"it is noted that your treating medical practitioner has advised that there are unresolved workplace matters involving line management. At this stage, the Health Service does not have sufficient information to understand the nature of these matters or assess whether they present any psychosocial hazards or risks that may affect your proposed return to work."

The same letter records that further information was required "to enable the Health Service to assess any identified risks, determine whether reasonable adjustments can be supported, and ensure that any return to work is planned and managed in accordance with its obligations under work health and safety legislation".

That was written on 7 July 2026. So far as I am aware, no assessment of those matters has been undertaken in the four weeks since. I ask that one be conducted, and that I be consulted in it, as clause 7.2.2 contemplates.

2.6 THE PROCESS ITSELF

Since 26 June 2026 I have been asked to provide medical information about myself, held out of my rostered shifts, had my accrued leave debited and then been recorded as absent without pay, and told that a decision will be made regarding my ability to perform my role.

The letter of 15 July 2026 refers to employees "being managed through Health Management processes". That is the only description of this process I have been given.

I have a phrase. I do not have a process.

I ask to be told, in relation to it:

- (a) the instrument under which it is conducted — the Act, directive, clause of the certified agreement, or policy;
- (b) what its steps are, and where they are published;
- (c) who the decision-maker is; and
- (d) what decision it ends in.

I am not raising this as a complaint about anyone. I raise it because I cannot follow a process properly, or exercise whatever rights attach to it, without knowing those four things. If the answer to any of them is that there is none, that is also something I need to know.

I note that the Health Service's Workplace rehabilitation standard (QH-IMP-401-5) requires that a worker be informed of "the appropriate dispute resolution process to follow in such cases where the worker does not agree with elements of a proposed workplace rehabilitation plan or suitable duties program". I have not been informed of any process.

Clause 1.11.1 records that the objectives of this procedure are to be achieved "by measures based on the provision of information and explanation". This is a request for information and explanation, and it is the first one I make.

3. THE STATUS QUO WHILE THE PROCEDURE IS FOLLOWED

Clause 1.11.4 provides:

"Subject to legislation, while the dispute procedure is being followed, normal work is to continue except in the case of a genuine safety issue. The status quo existing before the emergence of a dispute is to continue whilst the procedure is being followed. No party shall be prejudiced as to the final settlement by the continuation of work."

The status quo before the emergence of this dispute was that I was rostered and working. I ask that I be returned to my rostered shifts while the procedure is followed, in accordance with that clause. I am not asking for anything to be decided in my favour by doing so; clause 1.11.4 expressly provides that no party is prejudiced as to the final settlement

by the continuation of work.

I anticipate the Health Service may say that the exception for "a genuine safety issue" applies. If that position is taken, I ask that it be put in writing and that the following be identified, so that it can be discussed at Stage 1:

- (a) the hazard identified, and the assessment on which it was identified;
- (b) the control measures considered, in the order required by section 36 of the Work Health and Safety Regulation 2011, and why each was rejected; and
- (c) why the restrictions certified on the Employee Capabilities Checklist of 3 July 2026 do not address it.

I record that I hold a current certificate addressing my capacity, that I have proposed controls in writing, and that I have asked for the workplace assessment which would resolve the question.

4. WHAT I ASK AT STAGE 1

- (a) That I be told, in relation to the "Health Management processes" referred to in the letter of 15 July 2026, the four matters at 2.6(a) to (d) — the instrument, the steps and where they are published, the decision-maker, and the decision it ends in.
- (b) That I be told whether I am suspended from duty. If I am, I ask to be told by whom, under what provision, from what date to what date, and whether I am entitled to remuneration for the period. If I am not suspended, I ask to be told what my status is.
- (c) That I be returned to my rostered shifts while this procedure is followed, in accordance with clause 1.11.4; or, if that is not agreed, that the instrument relied on to maintain the position be identified in writing.
- (d) That the period from 3 July 2026 be treated as paid, and the leave debited since that date re-credited.

I put the basis for that shortly. Throughout the period I have been ready, willing and able to work. I have said so in writing and I have not withdrawn it. I hold a certificate, and the Health Service's own letter of 7 July 2026 records that "you have been certified fit to return to work effective from 3 July 2026". I have offered my services and they have not been accepted. I have not been provided with work, and I have not asked for leave.

I do not say the Health Service may not seek medical information. It may ask. What I have not been able to identify is the provision under which, having asked, it may both decline my services and decline to pay me. If there is one, I ask to be told what it is.

If the Health Service maintains that I am not to attend, I ask that the period be treated as paid special leave under the applicable directive, rather than debited against my own accrued entitlements, given that I hold a certificate of fitness with restrictions.

I also ask that the basis recorded on 13 July 2026 be reviewed. I was advised that my leave would be submitted as "income protection no pay from the 13th July 26, as per our guidelines for all QSuper claims for Income protection". I ask which guidelines are referred to, and I record that I asked the fund to cease benefits in March 2026 because I was working. On my understanding there is no income protection claim in payment. If that understanding is wrong I would be grateful to be corrected; if it is right, I am at present receiving neither wages nor benefit.

- (e) That the roster and payroll record for the twelve months preceding 3 July 2026 be provided to me, so that the pattern in fact worked is established from the Health Service's own records rather than from my estimate.
- (f) That feedback be provided on the work health and safety matters I have raised, in accordance with clause 7.1.11.
- (g) That a psychosocial risk assessment of the workplace be conducted in accordance with clause 7.2.

5. A MATTER I MUST RAISE ABOUT STAGE 1 ITSELF

Clause 1.11.2(a) requires that I inform my immediate supervisor. I have done so by this notice, so that there is no question that Stage 1 has been commenced.

I should record, however, that part of the subject matter of this dispute is the advice of 2 July 2026 and the reporting arrangements within Corporate Services. I have separately asked the Health Service to identify the delegate for decisions concerning my attendance and return to duty, and whether any conflict of interest has been identified and managed. I make no allegation against any individual, and clause 1.2 of the Code of Conduct for the Queensland Public Service records that a conflict of interest is not wrongdoing in itself.

For that reason I ask the Health Service to nominate an appropriate officer to conduct the Stage 1 discussion. If it prefers that the discussion proceed with my immediate supervisor, I do not object and will attend. I raise it so that it is dealt with now rather than later, and so that no Stage 1 discussion is later said to have been conducted by the wrong person.

I ask to have a support person and my union representative present at any discussion.

6. TIME

Clause 1.11.2(a) provides that "Stage 1 discussions should take place within 24 hours, and the procedure should not extend beyond seven days". Clause 1.11.2(b) provides that if the dispute remains unresolved, it is referred to the appropriate management representative, who "shall arrange a conference of the parties", and that this process "should not extend beyond seven days". Clause 1.11.5 provides that "no party shall act in a manner unreasonably or intentionally delay the timely resolution of a dispute".

I am available for a Stage 1 discussion at any time, including today.

7. WHAT THIS NOTICE DOES NOT DO

- (a) This notice is separate from my request of the same date under clause 10.3.2 for a change in the way I work. That request is to be decided under clause 10.3.4 to 10.3.6 and is not part of this dispute.
- (b) This notice is separate from my response of the same date to the Request for Medical Information of 31 July 2026.
- (c) Clause 1.12.2 provides that the employee grievance procedure "does not limit or affect any other dispute resolution provisions contained in this Agreement". Nothing in this notice limits any other avenue, and nothing in it is a waiver of any entitlement.
- (d) This notice makes no allegation against any individual and asks for no finding to be made about anyone. It asks for the agreement to be applied.

I confirm again that I am engaging with this process and want to return to work.

Yours sincerely,

Cory Lea Shepherd

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